

Brazil - National report on the implementation of the 1960 UNESCO Convention and Recommendation against Discrimination in Education - 2024

Brazil ratified the 1960 Convention and Recommendation against Discrimination in Education on September 6, 1968, by means of Decree N° 63.223. The prohibition of discrimination in education is enshrined in the Federal Constitution, both as a fundamental right (article 5) and a specific disposition in the education sector (articles 6, 23, 205, 206, 207, 208, 209, 210, 214, 225 among others). It is also a fundamental tenet of the “Law of Lines of Direction and Bases of the Education” (LDBEN — Law. No. 9.394/1996).

During the reporting period, the main activities undertaken by the Ministry of Education in order to advance the implementation of the 1960 Convention addressed important challenges in Rural Education, Environmental Education, Indigenous School Education, Ethnic-Racial Education and Quilombola School Education, Special Education from the Perspective of Inclusive Education, Bilingual Deaf Education, Literacy and Adult Education, and Human Rights Education.

Rural Education, aimed at Basic Education, seeks to guarantee the right to education for rural, riverine and forest peoples, covering all stages and modalities of Basic Education, developed from curricular proposals, pedagogical work organization, and methodologies and school calendar adapted to the sociocultural and environmental reality of rural communities. This set of actions is linked to the National Program for Rural Education (PRONACAMPO - MEC Ordinance No. 86/2013). Also noteworthy as important implementation mechanisms are the Operational Guidelines for Basic Education in Rural Schools (Resolution CNE/CEB No. 1/2002) and the LDBEN and its amendment, which includes an article on Alternating Pedagogy, establishing curricular contents and methodologies appropriate to the needs of rural school students (Law No. 14.767/2023). Regarding **Environmental Education**, which is enshrined in the Federal Constitution (Article 225, paragraph VI) and in national legislation (Law 9795/1999 and corresponding regulations establishing the National Policy for Environmental Education) the Coordination-General of Environmental Education for Diversity and Sustainability (CGAMS), at the ministry of Education, is currently engaged in reviewing the Environmental Education policy in order to ensure that needs and views of historically discriminated groups are fully included.

In the field of **Indigenous School Education**, the Directorate of Policies for Indigenous School Education at the Ministry of Education is engaged in promoting the rights and guarantees of ethnic minorities, including indigenous peoples, as established by the National Curriculum Guidelines for Indigenous Education in Basic Education (Resolution CNE/CEB No. 5, June 2012), and by the Decree 6.861, of May 2009, which regulates Indigenous School Education, and defines its organization in Ethnoeducational Territories (TEEs), with the participation of indigenous peoples, respecting their territoriality and specific social, historical, cultural, environmental, and linguistic needs. In this context, the following programs stand out: Support Program for Higher Education - Indigenous Intercultural Licensure and Pedagogy (PROLIND), Indigenous Knowledge Action in School (ASIE), and the National Program for Training

Teachers in Basic Education (Parfor Equity Indigenous). With a focus on Higher Education, the Directorate highlights the Permanence Scholarship for indigenous students, the Institutional Program for Initiation to Teaching (PIBID), and the creation of an Indigenous University. Finally, the National Commission for the Evaluation and Support of the Production of Indigenous Didactic and Literary Material (CAPEMA) currently promotes the production, evaluation, editing, and distribution of bilingual and multilingual indigenous educational materials.

The Directorate of Policies for **Ethnic-Racial Education and Quilombola School Education** at the Ministry of Education is currently working to implement the National Equity Policy, Education for Ethnic-Racial Relations, and Quilombola School Education (PNEERQ), established by MEC Ordinance No. 470, of May 14, 2024, aimed at promoting educational equity and inclusion, as established by LDBEN, and its modification (Law No. 11.645/2008), which made the inclusion of the teaching of African-Brazilian and Indigenous history and culture mandatory in school curricula. In this sense, the PNEERQ operates through the following structuring axes: 1) governance and strengthening of educational networks and collaboration regime; 2) diagnosis and monitoring of the implementation of Law No. 10.639/2003; 3) training of education professionals; 4) didactic, paradidactic, and pedagogical material; 5) protocols for identifying and responding to racism in education; 6) affirmation of quilombola trajectories; and 7) dissemination of knowledge.

The Directorate of Policies for **Special Education from the Perspective of Inclusive Education** at the Ministry of Education (DIPEPI) highlights that in 2023, the National Network Program for Continuing Teacher Training offered 38 courses in various areas of Special Education, as well as two projects focused on themes of Special Education from an Inclusive Perspective. Additionally, DIPEPI also promoted meetings of the Brazilian Braille Commission (CBB), which aims to develop and disseminate the Braille System in all its applications. Moreover, the National Commission for Special Education from the Perspective of Inclusive Education (CNEEPEI), a consultative commission, established by Ordinance No. 996, of May 23, 2023, supports MEC in the elaboration, monitoring, and evaluation of the Special Education Policy from the Perspective of Inclusive Education. Regarding the challenges of implementing policies, DIPEPI emphasizes the need for full participation of federal entities in public inclusion policies, in order to qualify and expand the coverage of continuing education on the axes of attending to the specificities of students in Special Education.

In the field of **Bilingual Deaf Education**, the Directorate of Policies for Bilingual Deaf Education (DIPEBS) at MEC is actively engaged in promoting the right to education in their first language for the deaf, based on Law 10.436/2002, which recognizes the Brazilian Sign Language, and Decree 5.626/2005, which regulates the aforementioned law; and Law 13.146/2015, which guarantees the provision of bilingual education in Libras. In May 2023, the National Commission for Bilingual Deaf Education (CNEBS) was established, as an advisory and consultative body to support MEC in the elaboration, monitoring, and evaluation of the Bilingual Deaf Education Policy. Regarding teacher training, DIPEBS conducted, during 2023, continuing education courses, offering over 4,000 places for teachers and bilingual deaf education professionals. For 2024, 46 projects are being evaluated, in addition to the PARFOR

Equity Notice, in which 14 Higher Education Institutions will offer licentiate degrees in Bilingual Deaf Education. Finally, the launch of the National Textbook Plan (PLND) Literary Thematic Modality Bilingual Deaf Education, focused on the distribution of didactic, pedagogical, and literary works, with a focus on bilingual deaf education, is being articulated with the Secretariat of Basic Education (SEB).

The Directorate of Policies for **Literacy and Adult Education** at MEC is currently implementing three programs with a particular focus on inclusion: the Support Program for Education Systems for Youth and Adult Education (PEJA); the Articulated Actions Plan (PAR); and the Program for Youth and Adult Education Integrated with Professional Education (EJA-Integrada - EPT). Other actions aimed at providing Youth and Adult Education are: 1) the planning for the elaboration of a public call, in order to carry out a diagnosis of the universe of students entitled to Youth and Adult Education; 3) the establishment of the National Commission for Literacy and Adult Education (CNaEJA), which advises, monitors, and supervises youth and adult literacy policies. Additionally, the Directorate is currently engaged in the modeling of the National Pact for overcoming illiteracy and qualifying Youth and Adult Education, with a particular focus on including groups facing discrimination.

Finally, the Coordination-General of **Educational Policies in Human Rights** (CGDH) emphasizes that the human rights education policy is being operationalized through actions to combat rights violations related to gender, refugees, and stateless persons. The main objective of the policy is to contribute to the consolidation of a human rights culture in educational institutions, encouraging the inclusion of human rights education as a structuring axis of basic and higher education curricula in accordance with LDBEN. Launched in 2003 and concluded in 2006, the National Plan for Human Rights Education (PNEDH) constitutes a legal normative framework that guides public policies for Human Rights Education in all education modalities. Based on the PNEDH, the National Education Council (CNE), through Opinion CNE/CP No. 8/2012, and Resolution No. 1 of the Full Council, of May 30, 2012, established the National Curriculum Guidelines for Human Rights Education, which considered Human Rights Education as one of the fundamental axes of the right to education, based on the principles of human dignity, equality of rights, recognition and appreciation of differences and diversities, secularism of the State, democracy, education, transversality, experience, and globality, and socio-environmental sustainability. The human rights education policy seeks to respond to the demands of social groups that have difficulty accessing and staying in Basic and Higher Education. In this regard, in 2024, 7,560 places were opened for basic education professionals to enroll in a specific training programme on "Human Rights and Diversity Education: educating and educating for the construction of a society based on human rights (CDHD)," a partnership between MEC and the Federal University of Uberlândia (UFU).

Additionally, in partnership with the Observatory of Human Rights and School Violence (Obdove) of the Federal University of São Carlos (UFSCar), an agreement was signed to offer a training course on "Human Rights, Equity, and Promotion of Diversity in Schools: Multipliers in Focus (CDHD II)," with 10,000 places offered to public basic education professionals. For Higher Education, the Specialization in Human Rights Education, created in partnership with the Federal University of Piauí (UFPI), stands out. In the fight against violence and

discrimination, we highlight the training actions in gender and diversity in school, as well as the elaboration of a protocol for identifying and responding to discrimination in education. Also noteworthy is the construction of a policy for refugee and stateless students, carried out in partnership with the Coordination-General of Education in Human Rights and Education for Migrants (CGHD) and the Coordination-General of Policies for Immigrants and Stateless Persons of the National Secretariat of Justice, at the Ministry of Justice (CGPI/DSN/MJ).